

## EQUIPMENT MAINTENANCE AND SERVICE AGREEMENT

Agreement ID: EMSA-MC-BS-2025-018

Effective Date: November 18, 2025

Parties: MedCare Clinics SARL and BioServe Medical Systems SARL

Governing law: Tunisia

### 1) Scope

BioServe will provide preventive maintenance, emergency repair, calibration, software updates, and spare-part coordination for five diagnostic imaging units operated by MedCare in Tunis, Ariana, and Sousse.

### 2) Service Levels

- Critical equipment downtime response: technician onsite within 6 business hours
- Monthly preventive maintenance visit for each covered site
- Uptime target: 98.5 percent measured monthly across covered units
- Replacement part quotation due within 2 business days after diagnosis
- Incident report due within 24 hours after each critical outage

### 3) Commercial Terms

- Monthly fixed maintenance fee: 18,750 TND excluding VAT
- Emergency callout included for first 4 calls per month
- Spare parts billed separately after written purchase order
- Payment terms: Net 30 from valid invoice and service report
- MedCare may withhold disputed invoice lines if written reasons are provided within 10 calendar days after invoice receipt.

### 4) Cure and Termination

Material breach may be notified in writing. BioServe has 10 business days to cure unless patient safety or regulatory compliance requires immediate mitigation.

MedCare may suspend payments for unsupported services, but must pay undisputed amounts when due.

### 5) Liability

Direct damages are capped at three months of fees. The cap does not apply to gross negligence, intentional misconduct, confidentiality breach, or regulatory penalties caused by BioServe's documented failure.

### 6) Confidentiality and Patient Data

Service logs may include device IDs and limited operational metadata. BioServe must not access patient records except where strictly required for diagnostics.

Any unauthorized access must be reported within 24 hours.

### 7) Dispute Resolution

Senior management negotiation must occur within 7 business days after notice.

If unresolved, the parties will attempt mediation in Tunis before arbitration.